

Before the
FEDERAL MARITIME COMMISSION

Docket No. 24-21

PKDC, LLC

v.

CMA CGM S.A.

JOINT MOTION TO FURTHER EXTEND DEADLINE

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant PKDC, LLC ("Complainant" or "PKDC"), and Respondent CMA CGM S.A. ("Respondent" or "CMA CGM" and, collectively with PKDC, the "Parties"), by their respective undersigned counsel, hereby jointly submit this Joint Motion to Further Extend Deadline ("Motion"), respectfully requesting a further 10-day extension of the current March 31, 2025, deadline for submission of discovery disputes to the Presiding Officer.

On January 21, 2025, the Presiding Officer entered a scheduling order ("Scheduling Order") that calls for the Parties to submit any unresolved disputes concerning initial requests for production of documents ("RFPs") and interrogatories no later than March 31, 2025.

The Parties served their initial interrogatories and RFPs on February 7, 2025. PKDC served CMA CGM with 27 interrogatories and 47 RFPs, some of which contained multiple sub-parts. CMA CGM served PKDC with 19 interrogatories and 16 RFPs, some of which contained multiple sub-parts.

The Parties exchanged objections and responses to their respective interrogatories and RFPs on March 14, as required by the Scheduling Order. Given the number of interrogatories and RFPs, there were a substantial number of objections and potential disputes.

On March 17, counsel for PKDC notified counsel for CMA CGM of what PKDC counsel considers to be deficiencies in CMA CGM's responses to PKDC's discovery requests. That notice contains some proposals to narrow certain discovery requests to address objections. Counsel for CMA CGM has notified counsel for PKDC verbally of what it considers to be deficiencies in PKDC's responses to CMA CGM's discovery requests.

On March 24, 2025, the parties filed a joint motion to extend the deadline for submission of discovery disputes to the Presiding Officer to April 14, 2025, which motion was granted on March 25, 2025.

Counsel for the Parties have met and conferred twice since filing the previous motion, and have made substantial progress towards resolving numerous differences between them and narrowing others. The Parties are in the process of attempting to memorialize and finalize their revised positions, which will then enable them to determine which issues, if any, need to be presented to the Presiding Officer for resolution.

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." The Parties submit good cause exists in this instance.

Pursuant to 46 C.F.R. §502.141(h), it is the responsibility of the Parties to resolve to the fullest extent possible disputes relating to discovery matters. The Parties are endeavoring to fulfill that responsibility and thereby conserve the resources of both the Parties and the Commission by avoiding, or at least minimizing, the need for motions to compel. The Parties merely seek an additional 10 days in which to conclude their efforts to resolve and/or minimize their differences

before resorting to motions practice. A further extension of the deadline to submit will enable the Parties to complete this work in orderly fashion and avoid the need to submit motions with respect to issues that may be resolved in whole or in part if they receive a small amount of additional time.

The Parties anticipate that granting this Motion would not require any further revisions to the Scheduling Order. Indeed, by allowing the Parties a small amount of additional time to confer in an effort to eliminate or at least minimize the need for the Presiding Officer to rule on one or more motions to compel, granting this Motion may increase the likelihood that the Parties will be able to adhere to the deadlines in the Scheduling Order.

WHEREFORE, the Parties jointly pray that this joint Motion be granted and that the deadline for submission of unresolved discovery disputes be revised to April 24, 2025.

Dated: April 7, 2025

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A

COZEN O'CONNOR

/s/ Jason M. Kenner

Jason M. Kenner
Andrew Margolis
675 Third Avenue
Suite 1805-06
New York, NY 10017
Telephone: (212) 549-0137

Counsel for Complainant PKDC, LLC

/s/ Wayne R. Rohde

Wayne R. Rohde
Kathryn Sobotta
2001 M Street NW
Suite 500
Washington, DC 20036
Telephone: (202) 463-2507

Counsel for Respondent CMA CGM S.A.